

Subash vs State Of

Author: Mohinder Pal

Bench: Mohinder Pal

SUBASH VASUDEVBHAI MEGHANIV/SSTATE OF GUJARAT

R/CR.MA/2672/2008

JUDGMENT

IN

THE HIGH COURT OF GUJARAT AT AHMEDABAD

CRIMINAL
MISC.APPLICATION NO. 2672 of 2008

FOR
APPROVAL AND SIGNATURE:

HONOURABLE
MR.JUSTICE MOHINDER PAL

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1

Whether

Reporters of Local Papers may be allowed to see the judgment ?

2

To

be referred to the Reporter or not ?

3

Whether

their Lordships wish to see the fair copy of the judgment ?

4

Whether

this case involves a substantial question of law as to the interpretation of the Constitution of India, 1950 or any order made thereunder ?

5

Whether

it is to be circulated to the civil judge ?

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SUBASH
VASUDEVBHAI MEGHANI & 2....Applicant(s)

Versus

STATE OF
GUJARAT & 1....Respondent(s)

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Appearance:

MR
NL RAMNANI, ADVOCATE for the Applicant(s) No. 1 - 3

MR
NIRAV C THAKKAR, ADVOCATE for the Respondent(s) No. 2

MS
MONALI BHATT, APP for the Respondent(s) No. 1

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CORAM:

HONOURABLE

MR.JUSTICE MOHINDER PAL

Date :
10/10/2013

ORAL
JUDGMENT

1. This is a petition for quashing of the FIR registered with Vanthali Police Station, Junagadh under Sections 498A, 467, 420, 323, 506(2) and 114 of the Indian Penal Code and Sections 3 and 4 of the Dowry Prohibition Act, wherein the petitioners are figured as accused persons. As per the

allegations of the complainant, she was married to petitioner No.1 on 24.02.2000 as per Hindu rites and customs. Two issues were born out of the wedlock. Petitioner No.1 is husband of the complainant, while petitioner No.2 is mother and petitioner No.3 is married sister of applicant No.1, who is stated to be residing at different place, i.e. Gandhidham, Kutch with her family. It was allegation of the complainant that she was harassed and tortured on account of demand of dowry by all the petitioners. She was beaten by petitioner No.1 at the instance of petitioner Nos.2 and 3. On the basis of these allegations, an FIR punishable under Sections 498A, 467, 420, 323, 506(2) and 114 of the Indian Penal Code and Sections 3 and 4 of the Dowry Prohibition Act was registered against the petitioners. The case was at the investigation stage when the petitioners approached this Court and further proceedings have been stayed.

2. Learned Counsel for the petitioners has submitted that the complainant-Menkaben has died on 19.05.2011 and after her death, the proceedings against all the accused should be dropped. In support of his submission, he has produced photo-state copy of death certificate of the deceased complainant. It is further submitted that petitioner No.1 is a patient of HIV positive and he is also suffering from paralysis and keeping in view his health and the fact that he is the only earning member of the family, the proceedings should be dropped. While arguing on behalf of other petitioners, it has been submitted that petitioner No.2 is mother of applicant No.1, who has nothing to do with the dowry articles and petitioner No.3 is married sister who is residing at Gandhidham, Kutch with her children and is no way connected with day-to-day affairs of the family of the complainant.

3. On the other hand, arguing on behalf of the State, it has been submitted that money amounting to Rs.2,40,000/- deposited in the account of the complainant has been misappropriated by the petitioners, which is a documentary proof. It is further submitted that mother-in-law and sister-in-law of the complainant have been continuously harassing her on account of demand of dowry and in view of these allegations, present petition is liable to be dismissed.

4. I have given thoughtful consideration to the submissions made by the learned Counsel for the parties. During course of arguments, learned Counsel for the petitioners has submitted that he wants to withdraw the petition qua petitioner No.1, i.e. husband of the complainant. However, according to him, petitioner Nos.2 and 3 have been falsely implicated in this case.

5. I agree with the submissions of the learned Counsel for the petitioners. Petitioner No.2 is mother-in-law of the complainant. Generally, old people have nothing to do with dowry articles as the dispute is generally between husband and wife and the elder member of the family try to settle the matter with an intention to see that no dispute is carried further between their children. Similarly, petitioner No.3 is married sister, who is residing at a different place. The marriage of the sister is stated to have taken place 8 years prior to the incident alleged by the complainant.

6. Under these circumstances, I am of the considered opinion that petitioner Nos.2 and 3, i.e. mother-in-law and sister-in-law of the complainant have been falsely implicated. Accordingly, proceedings against these two petitioners are ordered to be quashed. However, proceedings will continue against petitioner No.1, i.e. husband of the complainant. With these observations, the

present petition is partly allowed and disposed of. Rule is made absolute qua petitioners Nos.2 and 3 and Rule is discharged qua petitioner No.1. Interim relief is vacated in the above terms. However, it is made clear that order passed in this petition will not affect the other proceedings pending before the appropriate forum.

(MOHINDER PAL, J.) SHITOLE Page of 5